IN THE NATIONAL COMPANY LAW TRIBUNAL
CHANDIGARH (COURT – II)
(Through Hybrid Mode)

Item No.103
CP (CAA) No. 36/Chd/Chd/2023
(2nd Motion)

IN THE MATTER OF:

Malwa Renewable Energy Private Limited	**...**	**Transferor Company**
And		
Alcograin Distilleries Private Limited	**...**	**Transferee Company**

Under Section: 230-232, CA, 2013

Order delivered on 27.09.2024

CORAM:
SHRI. UMESH KUMAR SHUKLA, HON'BLE MEMBER (T)
SHRI. HARNAM SINGH THAKUR, HON'BLE MEMBER (J)

PRESENT:

For the Petitioner Company	**:**	Mr. Rahul Jogi, Advocate with Ms. Deepali Garg, PCS
For the RD/ROC	**:**	Mr. Vineet Khatri, Company Prosecutor
For the Income Tax Department	**:**	Mr. Yogesh Putney, Senior Standing Counsel

ORDER

Affidavit of service has been filed vide diary No.02893/3 dated 12.06.2024. Affidavit regarding no-objection has been filed vide diary No.02893/4 dated 28.06.2024. The same are taken on record.

Report of the Regional Director has been filed vide diary No.02893/5 dated 01.07.2024. It is stated by Mr. Vineet Khatri, Company Prosecutor for the RD/ROC that there is no observations/objections on behalf of the RD/ROC

against the Scheme. Report of Official Liquidator has been filed vide diary No.02893/6 dated 05.07.2024. The same are also taken on record. As per the Para 9 of the Official Liquidator's report, there is no specific observation/objections against the Scheme.

A date is requested by the learned Senior Standing Counsel for the Income Tax Department for filing their observations regarding the Scheme. Let the same be done within three weeks with a copy in advance to the counsel opposite. Response, thereto, if any, be filed within one week thereafter, with a copy in advance to the counsel opposite.

Learned Authorized Representative for the petitioner Companies is directed to file an affidavit whether they have license from the FSSAI. Last opportunity is granted to the West Bengal Electricity Regulatory Commission and State Excise Department to file their report. Let the same be done within three weeks with a copy in advance to the counsel opposite. Response, thereto, if any, be filed within one week thereafter, with a copy in advance to the counsel opposite.

Let the matter be listed on 08.11.2024.

Sd/- Sd/-

(UMESH KUMAR SHUKLA)
HON'BLE MEMBER (T)

(HARNAM SINGH THAKUR)
HON'BLE MEMBER (J)

Priyanka
27.09.2024